

**CHAPTER xcv.**

An Act to enable the Barry Railway Company to construct railways in the county of Monmouth and for other purposes. A.D. 1911.
[18th August 1911.]

WHEREAS by the Barry Railway Act 1907 (hereinafter referred to as "the Act of 1907") the Barry Railway Company (hereinafter referred to as "the Barry Company") were empowered to construct certain railways in the counties of Glamorgan and Monmouth respectively distinguished in the said Act as Railways Nos. 1 2 3 4 5 6 7 8 9 and 10: 7 Edw. 7.
c. clxxiii.

And whereas it is expedient that the Barry Company should be empowered to abandon the construction of certain portions of the said authorised Railways Nos. 9 and 10 and to construct in lieu of such abandoned portions the Deviation Railways Nos. 2 and 3 by this Act authorised:

And whereas in connection with and for the purposes of the construction of the said authorised Railway No. 9 and of the sidings to be provided in connection therewith it is expedient that a portion of the Monmouthshire (Western Valleys) Railway of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") should be deviated as by this Act provided and that the quarry sidings by this Act authorised should be provided in lieu of the existing siding accommodation at Cox's Quarry belonging to the Great Western Company and that such powers in that behalf as are contained in this Act should be conferred upon the Barry Company and the Great Western Company respectively:

And whereas by section 23 of the Act of 1907 it is enacted that the rates per ton per mile to be charged in respect of the conveyance of goods and mineral traffic upon the railways by that Act authorised shall be the same whether the traffic is

A.D. 1911. destined for or coming from the harbour or docks at Cardiff Penarth Barry or Newport:

9 Edw. 7.
c. lxxvii.

And whereas by the Barry Railway Act 1909 (herein-after referred to as "the Act of 1909") the Barry Company were authorised to abandon the construction of certain portions of certain of the railways authorised by the Act of 1907 and to construct certain new railways in lieu of the said abandoned portions or in connection with the said authorised railways and it was provided by the Act of 1909 that the said section 23 of the Act of 1907 should apply to such new railways and to the conveyance by the Barry Company of certain traffic upon the Rhymney Railway between the junction therewith of the junction railway authorised by the Act of 1909 and Penrhos:

And whereas it is expedient that the provisions contained in this Act with respect to the said section 23 of the Act of 1907 and the said provisions of the Act of 1909 should be made:

8 Edw. 7.
c. lxiii.

And whereas it is expedient that the periods now limited for the construction by the Barry Company of the railways respectively authorised by the Act of 1907 and the Act of 1909 and by the Barry Railway Act 1908 should be extended and that the periods now limited for the compulsory purchase of the lands required for the purposes of the railways respectively authorised by the said Barry Railway Act 1908 and by the Act of 1909 should also be extended:

And whereas it is expedient that the other provisions contained in this Act should be made:

And whereas plans and sections showing the line and levels of the railways authorised by this Act and the lands in or through which the same may be made or which may be taken for the purposes thereof and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were deposited with the clerk of the peace for the county of Monmouth and are hereinafter respectively referred to as "the deposited plans sections and book of reference":

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and

Temporal and Commons in this present Parliament assembled A.D. 1911.
and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Barry Railway Act 1911. Short title.

2. The following Acts and parts of an Act are (except Incorporation of
general Acts.
where the same are inconsistent with or expressly varied by
this Act) incorporated with and form part of this Act (namely):—

The Lands Clauses Acts;

The Railways Clauses Consolidation Act 1845; and

Part I. (Construction of a railway) and Part II. (Extension
of time) of the Railways Clauses Act 1863.

3. In this Act the several words and expressions to which Interpreta-
tion.
meanings are assigned by the Acts wholly or partially incor-
porated herewith have the same respective meanings unless there
be something in the subject or context repugnant to such
construction And—

The expression "the Barry Company" means the Barry
Railway Company;

The expression "the Great Western Company" means the
Great Western Railway Company;

The expression "the Act of 1907" means the Barry Railway
Act 1907;

The expression "the Act of 1909" means the Barry Railway
Act 1909;

The expression "the Barry Railways" means the Deviation
Railways Nos. 2 and 3 by this Act authorised;

The expression "the Western Valleys Railway" means the
Monmouthshire (Western Valleys) Railway of the Great
Western Company;

The expression "the quarry sidings" means the Quarry
Sidings Nos. 1 and 2 by this Act authorised.

4. Subject to the provisions of this Act the Barry Company Power to
make rail-
ways.
may make in the line and according to the levels shown on
the deposited plans and sections the deviation railways and
quarry sidings in the parish and urban district of Risca in the
county of Monmouth hereinafter described with all proper
stations sidings approaches works and conveniences connected
therewith and may enter upon take and use such of the lands
delineated upon the deposited plans and described in the

A.D. 1911. deposited book of reference as may be required for those purposes The railways hereinbefore referred to and authorised by this Act are—

A Deviation Railway No. 1 (5 furlongs 7·4 chains or thereabouts in length) commencing by a junction with the Western Valleys Railway near Cross Keys Station and terminating by a junction with the said railway near the viaduct carrying the Great Western Railway (Pennar Branch) (hereinafter referred to as "the Pennar Branch") over the Western Valleys Railway:

A Deviation Railway No. 2 (1 furlong 7·5 chains or thereabouts in length) commencing by a junction with the Railway No. 9 described in and authorised by the Act of 1907 near the bridge carrying the Western Valleys Railway over the River Ebbw and terminating by a junction with the Deviation Railway No. 1 by this Act authorised near the said bridge carrying the Western Valleys Railway over the River Ebbw:

A Deviation Railway No. 3 (2 furlongs 8·62 chains or thereabouts in length) commencing by a junction with the Deviation Railway No. 2 by this Act authorised near the said bridge carrying the Western Valleys Railway over the River Ebbw and terminating by a junction with the Railway No. 10 described in and authorised by the Act of 1907 near the said viaduct carrying the Pennar Branch over the Western Valleys Railway:

A Quarry Siding No. 1 (2 furlongs 5 chains or thereabouts in length) commencing at a point 15 chains or thereabouts measured in a westerly direction from the bridge carrying the Western Valleys Railway over the public road at the north-western end of Cross Keys Station and terminating at a point 13 chains or thereabouts measured in a northerly direction from the bridge carrying the Western Valleys Railway over the River Ebbw:

A Quarry Siding No. 2 (1 furlong 3 chains or thereabouts in length) commencing by a junction with the Deviation Railway No. 1 by this Act authorised at a point thereon 10 chains or thereabouts measured in a north-westerly direction from the said bridge at the north-western end of Cross Keys Station and terminating by a junction with the Quarry Siding No. 1 by this Act authorised near the said bridge over the River Ebbw.

The Barry Company may maintain the said Deviation Railways No. 2 and No. 3 as and when so made: A.D. 1911.

Provided that the Barry Company shall not construct the said Deviation Railway No. 1 further than up to formation level but so soon as reasonably practicable after the completion by the Barry Company of such work the Great Western Company may and shall at their own expense complete the said railway:

Provided also that nothing in this Act shall authorise the Barry Company in constructing the said Deviation Railways No. 2 and No. 3 respectively to lay down more than two lines of rails.

5. In making the Barry Railways and the Deviation Railway No. 1 and the quarry sidings and works in connection therewith by this Act authorised the Barry Company may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans and may subject to the provisions of this Act deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards or downwards or to such further extent as the Barry Company may find necessary or convenient and as may be sanctioned by the Board of Trade: Power to deviate.

Provided that in constructing the Barry Railways and the quarry sidings the Barry Company shall not without the consent of the Great Western Company deviate laterally to a greater extent than 1 chain in either direction from the centre line thereof shown on the deposited plans and that in constructing the junction between the Deviation Railway No. 1 and the Deviation Railway No. 2 by this Act authorised the Barry Company shall not without the like consent place the same at any point distant more than 3 chains northward or southward of the point of junction shown on the deposited plans. Provided also that in constructing the said Deviation Railway No. 1 the Barry Company shall not without the consent of the Great Western Company (which consent shall not be unreasonably withheld) deviate laterally to any extent from the centre line thereof shown on the deposited plans and that if any difference shall arise between the Barry Company and the Great Western Company under this proviso the same shall be determined by arbitration in accordance with the provisions of the section of this Act of which the marginal note is "Arbitration as to

A.D. 1911. — differences with respect to works” Provided further that the said Deviation Railway No. 1 shall be constructed at the levels shown on the deposited sections and the gradient of the portion of Quarry Siding No. 2 to be constructed on the eastern side of the said Deviation Railway No. 2 shall not be steeper than one in sixty-five.

Protection of
gas and
water mains
of local
authorities.

6. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if “local authority” were mentioned in those sections in addition to “company” or “society” Provided that any penalties recovered under the said section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Period for
completion of
Barry Rail-
ways.

7. If the Barry Railways are not completed on or before the twenty-eighth day of August one thousand nine hundred and sixteen then as from that date the powers by this Act granted to the Barry Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

8. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Barry Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Barry Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Barry Company or each or any of them are hereinafter included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties”:

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Barry Company that he alleges

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that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Barry Company such portion only without the Barry Company being obliged or compellable to purchase the whole the Barry Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Barry Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Barry Company have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Barry Company the portion which the tribunal shall have determined to be so severable without the Barry Company being obliged or compellable to purchase the whole the Barry Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the

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determination of any matters under this section shall be borne and paid by the owner:

- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Barry Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Barry Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Lands for
extraordin-
ary purposes.

9. The quantity of land to be taken by the Barry Company by agreement under this Act for the extraordinary purposes mentioned in the Railways Clauses Consolidation Act 1845 shall not exceed five acres but nothing in this Act or in that Act shall exempt the Barry Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so taken.

Power to
take ease-
ments &c. by
agreement.

10. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the

provisions of those Acts and of this Act grant to the Barry Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

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11. The powers of the Barry Company for the compulsory purchase of lands for the purposes of this Act shall cease after the twenty-eighth day of August one thousand nine hundred and fourteen.

Period for compulsory purchase of lands.

12. If the Barry Company fail within the period limited by this Act to complete the Barry Railways the Barry Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railway in respect of which default is made is completed and opened for public traffic or until the sum received in respect of such penalty shall amount to five per centum on the estimated cost of such railway and the said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854 and every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided but no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Barry Company were prevented from completing or opening such railway by unforeseen accident or circumstances beyond their control. Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Penalty on Barry Company if Barry Railways not completed.

13. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners

Application of penalty.

A.D. 1911. or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Barry Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit and if no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Barry Company is insolvent or the railway in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Barry Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the Barry Company.

Barry Railways to form part of undertaking of Barry Company.

14. The Barry Railways and the works connected therewith shall for the purposes of tolls rates and charges and all other purposes be part of the undertaking of the Barry Company.

Barry Company may abandon portions of certain authorised railways.

15.—(1) The Barry Company shall abandon the construction of—

(a) So much of Railway No. 9 described in and authorised by the Act of 1907 as lies between the commencement of the Deviation Railway No. 2 by this Act authorised and the termination of the said authorised Railway No. 9; and

(b) So much of Railway No. 10 described in and authorised by the Act of 1907 as lies between the commencement of that railway and the termination of the Deviation Railway No. 3 by this Act authorised.

(2) In construing the Act of 1907 all references to the said Railways No. 9 and No. 10 by that Act authorised

shall be construed as references to the said railways as varied by this Act. A.D. 1911.

16. The abandonment by the Barry Company under the authority of this Act of any portion of any railway or works shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Barry Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Barry Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the Act of 1907.

Compensation for damage to land by entry &c. for purposes of portions of railways abandoned.

17. Where before the passing of this Act any contract has been entered into or notice given by the Barry Company for the purchasing of any land for the purposes of or in relation to any portions of the railways or works authorised to be abandoned by this Act the Barry Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Barry Company to the owners and occupiers of or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

Compensation to be made in respect of portions of railways abandoned.

18. Forthwith upon the completion by the Barry Company of the Deviation Railway No. 1 by this Act authorised or so much thereof as is to be constructed by that company. under the provisions of this Act the Great Western Company shall repay to the Barry Company the cost reasonably incurred by that company in constructing the bridge carrying the said railway over the River Ebbw of a width sufficient for four lines of way instead of two lines of way.

Great Western Company to repay part cost of constructing Deviation Railway No. 1.

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Abandon-
ment of por-
tion of West-
ern Valleys
Railway.

19. On the completion and opening for traffic of the Deviation Railway No. 1 by this Act authorised the Great Western Company may abandon and discontinue so much of the Western Valleys Railway as lies between the respective points of commencement and termination of the said deviation railway and the Great Western Company may sell or dispose of or may hold and use and apply to the purposes of their undertaking or of this Act the lands forming the site of the portion of railway so abandoned.

Barry Com-
pany to sub-
mit plans &c.
of authorised
works to
Great West-
ern Com-
pany.

20.—(1) Before commencing any of the works by this Act authorised the Barry Company shall submit to the Great Western Company for their reasonable approval detailed plans drawings sections cross-sections and specifications of the works proposed to be constructed and if for twenty-one days after such submission the Great Western Company fail to signify their approval of such plans drawings sections cross-sections and specifications the said works shall unless otherwise agreed between the Barry Company and the Great Western Company be constructed according to plans drawings sections cross-sections and specifications to be determined by arbitration in accordance with the provisions of the section of this Act of which the marginal note is "Arbitration as to differences with respect to works."

(2) The Barry Company shall also from time to time submit to the Great Western Company plans and particulars of all works or conveniences (other than works or conveniences shown on the deposited plans or to which the Great Western Company may have assented) which they may propose to construct or provide upon lands situate between the Deviation Railway No. 1 by this Act authorised and the River Ebbw as diverted under the powers of this Act and if within twenty-one days after the date of such submission the Great Western Company shall by notice in writing addressed to the Barry Company intimate that the works or conveniences so proposed to be constructed are not in their opinion reasonably necessary for or in connection with the full free and convenient exchange working and accommodation of traffic passing or intended to pass through the junction of the Deviation Railway No. 2 with the Deviation Railway No. 1 between the system of the Barry Company and the system of the Great Western Company the matter shall be referred to arbitration under the provisions of the section of this Act of which the marginal note is "Arbitration as to differences with respect to works" and if the arbitrator shall determine

that such works or conveniences are not such as the Barry Company are empowered to construct or provide and are not reasonably necessary for the purposes aforesaid the Barry Company shall not construct or provide the same.

21. Forthwith upon the completion and opening for traffic of the Deviation Railway No. 1 by this Act authorised the Barry Company shall convey to the Great Western Company free of cost the site of the said deviation railway and such quantity (if any) of land on either side thereof as shall suffice with such site for the accommodation of four lines of rails (so far as such site and land are not already vested in the Great Western Company) and as from the date of such conveyance the said railway shall vest in the Great Western Company and shall for the purposes of tolls rates and charges and all other purposes form part of the Monmouthshire railways of that company amalgamated with the undertaking of the Great Western Company by the Great Western and Monmouthshire Railway Companies Amalgamation Act 1880:

Vesting Deviation Railway No. 1 in Great Western Company.

Provided that either the Barry Company may reserve to themselves upon any such conveyance as aforesaid an easement or right of maintaining and using the junction of the Deviation Railway No. 2 by this Act authorised with the said Deviation Railway No. 1 or the Great Western Company shall upon any such conveyance as aforesaid grant to the Barry Company free of cost such an easement or right as aforesaid.

22.—(1) When constructing the Deviation Railways Nos. 2 and 3 by this Act authorised or either of them the Barry Company shall also construct the said Deviation Railway No. 1 and the quarry sidings and shall so far as reasonably practicable proceed simultaneously with the construction of all such works or so much thereof as is to be constructed by the Barry Company under the provisions of this Act and the Great Western Company shall from time to time as and when required by the Barry Company give the Barry Company possession of so much of the land belonging to the Great Western Company as is from time to time available for and as the Barry Company may require for the construction of the works the nature and extent and approximate position of which are shown on the plan marked "A" signed by the Right Honourable the Viscount Hutchinson (Earl of Donoughmore) the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (of which plan

Barry Company to proceed simultaneously with all works and Great Western Company to convey certain lands to them.

A.D. 1911. — one copy has been deposited in the Private Bill Office of the House of Commons and one copy has been deposited in the Parliament Office of the House of Lords) The Great Western Company shall also remove all permanent way from and convey to the Barry Company so much as that Company may require for the construction of the said works of the land forming the site of (a) that part of the Western Valleys Railway which is rendered unnecessary by the said Deviation Railway No. 1 (except any portion thereof which is to remain the property of the Great Western Company under the provisions of the section of this Act of which the marginal note is "Vesting quarry sidings in Great Western Company") and (b) the existing siding connection between the Western Valleys Railway and Cox's Quarry.

(2) The land to be conveyed by the Great Western Company to the Barry Company under the provisions of this section shall to the extent of the area of the land to be conveyed to the Great Western Company by the Barry Company under the provisions of the section of this Act of which the marginal note is "Vesting Deviation Railway No. 1 in Great Western Company" be so conveyed free of cost to the Barry Company and the Barry Company shall pay to the Great Western Company for the remainder of the land to be conveyed by the Great Western Company under the provisions of this section such compensation as failing agreement shall be determined in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement.

Great Western Company to render facilities for construction of works.

23. The Great Western Company shall render to the Barry Company all such facilities and assistance as the Barry Company may reasonably require in carrying out the works by this Act authorised and any siding accommodation in connection therewith which the Barry Company may construct with the assent of the Great Western Company.

Power to Great Western Company to execute certain parts of works.

24.—(1) If the Great Western Company shall desire themselves to execute any work involving interference with or alteration of their works rendered necessary or convenient for effecting the construction of the works by this Act authorised and shall give to the Barry Company notice in writing of such their desire the Barry Company shall not execute any such work of interference or alteration but the Great Western Company may and shall execute the same at the expense (except as by this Act otherwise expressly provided) of the Barry Company.

(2) If and when in accordance with the provisions of this Act the Great Western Company themselves lay down the permanent way for the Deviation Railway No. 1 by this Act authorised they shall simultaneously therewith and at the expense of the Barry Company construct all junctions connections and other similar works in connection with the said railway.

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25. The construction by the Barry Company of the quarry sidings shall be deemed to be in full satisfaction and discharge of their obligations under subsection (5) of section 37 (For protection of Great Western Railway Company) of the Act of 1907 but the remaining provisions of that section so far as the same are applicable and not inconsistent with the provisions of this Act shall extend and apply to the deviation railways by this Act authorised.

Discharge of Barry Company from certain obligations under section 37 of Act of 1907.

26.—(1) Notwithstanding anything contained in this Act or shown on the deposited plans the Barry Company shall not acquire from the Great Western Company any of the land required for the purpose of the quarry sidings or any interest in such land except so far as such land may be required by the Barry Company for the construction of the Deviation Railway No. 2 by this Act authorised but so much of such land as is now the property of the Great Western Company shall (except as aforesaid) remain the property of that company Provided that nothing in this section shall interfere with or affect the right or obligation of the Barry Company to construct the quarry sidings in manner by this Act authorised.

Vesting quarry sidings in Great Western Company.

(2) The quarry sidings shall by virtue of this Act vest in and become the property of the Great Western Company forthwith upon the completion thereof and the Barry Company shall convey to the Great Western Company free of cost so much of the land forming the site of the quarry sidings (except so much thereof as forms any part of the site of the Railway No. 9 authorised by the Act of 1907 as varied by this Act or of the Barry Railways) as is not at the date of such conveyance the property of that company.

The quarry sidings shall be deemed to be in all respects and for all purposes substituted for the existing siding connections of the Great Western Company with Cox's Quarry and shall at all times after such vesting as aforesaid be maintained by the Great Western Company and the Barry Company shall repay to

A.D. 1911. the Great Western Company the annual cost (if any) reasonably incurred by the Great Western Company in such maintenance in excess of such amount as may be agreed between the Barry Company and the Great Western Company or as may failing such agreement be determined by an arbitrator to be appointed on the application of either of the said companies by the Board of Trade as being the present cost to the Great Western Company of maintaining the said existing siding connections.

(3) The Barry Company shall afford to the Great Western Company free of charge such facilities and rights of passage across the said Railway No. 9 and the Barry Railways as may be reasonably necessary for the maintenance and user of the quarry sidings.

Great West-
ern Company
and Barry
Company to
afford traffic
facilities.

27. The Great Western Company shall afford all reasonable facilities for the traffic of the Barry Company passing between Railway No. 9 authorised by the Act of 1907 as varied by this Act and any sidings to be constructed by the Barry Company in connection therewith and with the Deviation Railway No. 1 by this Act authorised and the Barry Company shall afford all reasonable facilities for the traffic of the Great Western Company passing between Cox's Quarry and the Western Valleys Railway.

Arbitration
as to dif-
ferences with
respect to
works.

28. Any difference under the provisions of this Act with respect to the works by this Act authorised or any of them which may arise between the Barry Company and the Great Western Company shall (except so far as otherwise expressly provided by this Act) be determined by an engineer or other fit person to be appointed by the Board of Trade on the application of either party and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

For pro-
tection of
Western
Valleys
(Monmouth-
shire) Sewer-
age Board.

29. For the protection of the Western Valleys (Monmouthshire) Sewerage Board (hereinafter called "the board") the following provisions unless otherwise agreed between the Barry Company and the board shall have effect:—

- (1). Notwithstanding anything shown on the deposited plans no part of any of the railways authorised by this Act or any works connected therewith shall between the points A and B and between the points C and D be constructed within twenty feet from the centre line of the existing sewer of the board shown by the red

lines on the plan signed by the Right Honourable John Henry Whitley the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred (of which plan one copy has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords) hereinafter referred to as "the signed plan":

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- (2) Before commencing the construction of any works authorised by this Act over or within twenty feet of the centre line of the said sewer between the points B and C as shown on the signed plan the Barry Company shall submit to the board's engineer for his reasonable approval plans sections and particulars of such portion of the said works and the Barry Company shall make such provision for the protection of the said sewer also any alterations and additions to the said sewer as may be reasonably demanded by the engineer to the board. Provided that if within fourteen days of the receipt of such plans sections and particulars the board's engineer has not signified his disapproval he shall be deemed to have approved thereof:
- (3) The Barry Company shall take all reasonable precautions and do and maintain all such works as may be necessary for preventing as far as possible any injury to the said sewer of the board and shall also at all times make good all damage which may be occasioned by the operations or works of the Barry Company to the reasonable requirements and satisfaction of the engineer to the board:
- (4) If the Barry Company their agents workmen or contractors shall in the execution of any works authorised by this Act hinder or interfere with or obstruct or render more difficult or costly the maintenance of the said sewer of the board the Barry Company shall on demand pay to the board such additional cost of maintenance as may be reasonably incurred in consequence thereof:
- (5) The Barry Company shall at all reasonable times permit the board their officers agents servants workmen and contractors with or without materials to have free

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and uninterrupted access to any part of the said sewer which lies within the boundaries or limits of the property of the Barry Company:

- (6) The Barry Company shall pay on demand to the board the reasonable costs incurred by the board in watching and superintending the construction of the said railway and works over under or within a distance of twenty feet from the centre line of the said sewer by the Barry Company and in the execution of any works of the Barry Company in altering or strengthening the said sewer of the board:
- (7) If any difference shall arise between the Barry Company and the board touching anything to be done or not to be done under the provisions of this section such difference shall be settled by an engineer appointed (unless otherwise agreed) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

For protection of
Risca Urban
District
Council.

30. For the protection of the Risca Urban District Council (in this section called "the council") the following provisions shall unless otherwise agreed in writing between the council and the Barry Company have effect (that is to say):—

- (1) Wherever any deviation railway or quarry siding and works in connection therewith by this Act authorised is constructed over a sewer of the council the Barry Company shall provide to the reasonable satisfaction of the council proper and sufficient works for protecting such sewer from injury and shall provide suitable means of access to such sewer and the council shall at all times be entitled to access thereto in order to inspect repair maintain or renew the same and if at any time the council shall incur additional expense in connection with such repairing maintenance or renewal by reason of the existence of any railway or siding as aforesaid such additional expense shall be repaid to them by the Barry Company:
- (2) If by reason of the execution of any of the powers of this Act the council shall necessarily incur any

additional cost in connecting any sewers with the main trunk sewer of the Western Valleys (Monmouthshire) Sewerage Board the Barry Company shall repay such additional cost to the council and the Barry Company shall afford all reasonable facilities for carrying out such works:

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- (3) Wherever it may be necessary to intercept or interfere with any sewer or drain of the council the Barry Company shall before intercepting or interfering with such sewer or drain construct another sewer or drain to the reasonable satisfaction of the council and according to a plan to be reasonably approved by the council and such substituted sewer or drain shall be connected by the council at the expense of the Barry Company with the existing sewer or drain which may be intercepted or interfered with in such manner as shall be reasonably approved by the council:
- (4) Notwithstanding anything shown on the deposited plans and sections the Barry Company shall not interfere with the public road known as Western Terrace Cross Keys and numbered on the deposited plans in respect of Deviation Railway No. 1 109 in the parish of Risca:
- (5) Any difference which may arise between the council and the Barry Company under any of the provisions of this section or as to the mode of giving effect thereto shall be referred to the arbitration of and determined by an engineer or other fit person to be appointed (unless otherwise agreed) on the application of either party by the President for the time being of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

31. For the purpose of removing any doubt as to the meaning and effect of section 23 of the Act of 1907 and section 23 of the Act of 1909 (both hereinafter referred to as "section 23") it is hereby enacted that the Barry Company may charge on any existing railways forming part of their undertaking a different rate per ton per mile from that charged on the railways subject to section 23 which railways shall be deemed to include the railways by this Act authorised (hereinafter together referred to as "the new railways") and the Barry

As to section 23 of Act of 1907 &c.

A.D. 1911. Company shall not be bound to charge on the new railways the same rate per ton per mile to or from every place but the rate per ton per mile on the new railways from or to any one place to or from the harbour or docks at Cardiff Penarth Barry or Newport shall be the same.

Barry Company may apply their funds towards purposes of Act.

32. The Barry Company may apply towards the construction of the railways and works by this Act authorised and to the other purposes of this Act to which capital is properly applicable any moneys which they are already authorised to raise and which may not be required by them for the purposes for which the same were authorised to be raised.

Power to lease lands &c.

33. And whereas lands have from time to time been purchased or acquired by the Barry Company adjoining or near to railways or stations belonging to the Barry Company but such lands are not immediately and may not hereafter be required for the purposes of the undertaking of the Barry Company and it is expedient that further powers should be conferred upon the Barry Company with respect to such lands Therefore notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any Act relating to the Barry Company with which that Act is incorporated the Barry Company shall not be required to sell or dispose of any such lands but may retain hold or use or may lease or otherwise dispose of the same :

Provided that nothing in this section or done by the Barry Company thereunder shall alter or affect the operation as regards any such lands as aforesaid within the urban district of Barry of any statutory provisions byelaws or regulations which the Barry Urban District Council would have been entitled to enforce if this section had not been enacted :

Provided also that the Barry Company shall not be entitled without the consent in writing of the Barry Urban District Council (which consent shall not be unreasonably withheld) to supply water or gas or any other means of lighting to any of the dwelling-houses at Cadoxton belonging to the Barry Company or to any other dwelling-house hereafter erected by the Barry Company on any such lands as aforesaid.

Extension of time for completion of works under Acts of 1907 and 1909 and

34.—(1) The periods respectively limited by the Act of 1907 and the Act of 1909 for the completion of the railways and works described in and authorised by those Acts respectively (as extended by the Barry Railway Act 1910) are hereby further

extended until the twenty-eighth day of August one thousand nine hundred and sixteen and sections 20 21 and 22 of the Act of 1907 sections 20 21 and 22 of the Act of 1909 and section 5 of the said Barry Railway Act 1910 shall be read and have effect accordingly; and

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for purchase
of lands un-
der Act of
1909.

(2) The period limited by the Act of 1909 for the compulsory purchase of lands required for the purposes of the railways and works described in and authorised by that Act is hereby extended until the twenty-eighth day of August one thousand nine hundred and fourteen and section 19 of the said Act shall be read and have effect accordingly.

35. The period limited by the Barry Railway Act 1908 for the completion of the railways and works described in and authorised by that Act is hereby extended until the twenty-eighth day of August one thousand nine hundred and sixteen and sections 11 12 and 13 of the said Act shall be read and have effect accordingly.

Extension of
time for com-
pletion of
railways
authorised by
Barry Rail-
way Act
1908.

36. The period limited by the Barry Railway Act 1908 for the compulsory purchase of lands required for the purposes of the railways and works described in and authorised by that Act is hereby extended until the twenty-eighth day of August one thousand nine hundred and fourteen and section 10 of the said Act shall be read and have effect accordingly.

Extending
time for com-
pulsory pur-
chase of
lands under
Barry Rail-
way Act
1908.

37. Nothing in this Act contained shall exempt the Barry Company or the Great Western Company or the railways of either of those companies from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels.

Provision
as to general
Railway
Acts.

38. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Barry Company.

Costs of Act.

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The SCHEDULE referred to in the foregoing Act.

HOUSES BUILDINGS AND MANUFACTORIES OF WHICH PARTS
ONLY MAY BE TAKEN.

Railway.	Parish.	Numbers on deposited Plans.
Deviation Railway No. 1	Risca	114 115 122 123 and 125.
Deviation Railway No. 2	Risca	112 114 115 and 122.
Deviation Railway No. 3	Risca	114 115 122 and 123.
Quarry Siding No. 1	Risca	112 114 115 and 122.
Quarry Siding No. 2	Risca	114 115 and 122.

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